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LINE 1

21-CIV-06774

DAVID FOGEL ET AL. VS CITY OF MENLO PARK

CAILIN DARKE
CITY OF MENLO PARK

JAMES PISTORINO
KEVIN D. SIEGEL

PLAINTIFFS' MOTION TO STAY ENFORCEMENT OF JUDGMENT AND ATTORNEY'S FEES AND COSTS BRIEFING
PENDING APPEAL

TENTATIVE RULING:

The court rules on plaintiffs' motion to stay enforcement of judgment and attorney's fees and costs briefing pending appeal as follows:

This is a tax refund case that was filed in 2021 brought against the City of Menlo Park (City). Although the case moved quickly to class certification and liability, the case slowed down after that. The court's orders and the parties' briefing set forth the myriad of issues raised and decided by this court. On August 17, 2026, the court entered judgment deciding on all issues raised, except attorneys' fees and costs.

Neither party discusses the standard of review and burden of proof for a motion to stay pending appeal. Plaintiffs refer to Code of Civil Procedure sections 916 and 918 in their motion, but have no discussion or analysis of the section or any case law. (Motion at p. 1.) Section 916 refers to the stay on perfection on appeal and the trial court's jurisdiction during an appeal. Section 918 allows a judge to stay enforcement pending appeal.

Since plaintiffs are appealing the money judgment, they do not need to post a bond. (*Cal. Judges Benchbook Civ. Proc. After Trial* § 6.203 (Dec. 2025 update) (Benchbook).) The City does not argue that a bond is required.

Unless there is a specific statute regarding stays, "the perfecting of an appeal automatically stays proceedings on the judgment in the trial court, including enforcement proceedings. (Benchbook, *supra*, § 6.203 [citing Code of Civil Procedure § 916, subdivision (a); *LAOSD Asbestos Cases* (2018) 28 Cal.App.5th 862, 871–872; *Quiles v Parent* (2017) 10 Cal.App.5th 130, 137.) The parties do not discuss what is automatically stayed by this appeal and what is not stayed.

"[W]hether a matter is 'embraced' in or 'affected' by a judgment [or order] within the meaning of [section 916] depends on whether postjudgment [or postorder] proceedings on the matter would have any effect on the 'effectiveness' of the appeal." (*In re Marriage of Horowitz* (1984) 159 Cal.App.3d 377, 381, 205 Cal.Rptr. 880 (*Horowitz*).) "If so, the proceedings are stayed; if not, the proceedings are permitted." (*Betz v. Pankow* (1993) 16 Cal.App.4th 931, 938, 20 Cal.Rptr.2d 841 (*Betz*).)

The fact that the postjudgment or postorder proceeding may render the appeal moot is not, by itself, enough to establish that the proceeding affects the effectiveness of the appeal and should be stayed under section. Rather, something more is needed. For example, the trial court proceeding must directly or indirectly seek to “enforce, vacate or modify [the] appealed judgment or order.” (*Elsea [v. Saberi]* (1992)], *supra*, 4 Cal.App.4th [625] at p. 629, 5 Cal.Rptr.2d 742 [“The trial court’s power to enforce, vacate or modify an appealed judgment or order is suspended while the appeal is pending”].) Or the proceeding must substantially interfere with the appellate court’s ability to conduct the appeal. (See, e.g., *Hollaway v. Scripps Memorial Hosp.* (1980) 111 Cal.App.3d 719, 723–724, 168 Cal.Rptr. 782 [holding that a pending appeal precludes the trial court from issuing an order relieving the parents as plaintiff’s guardians and appointing new counsel for plaintiff because the order interferes with the conduct of the appeal].)

A trial court proceeding also affects the effectiveness of an appeal if the possible outcomes on appeal and the actual or possible results of the proceeding are irreconcilable.

(*Varian Medical Systems, Inc. v. Delfino* (2005) 35 Cal.4th 180, 189–190.)

The court agrees with the City, as previously briefed and decided by the court, that the City can deposit the judgment amount with the settlement administrator to stop the accrual of interest. The court will not stay the City’s ability to deposit the judgment.

However, the court finds that the notice and claims administration process should not occur because, based upon the issues that class counsel has indicated will be the basis of the appeal, including the class period, discovery rulings, prejudgment interest, the class notice, the refund process, and the return of unclaimed funds to the City, it is possible that there may need to be a new damage trial and/or change in the distribution plan, including notice. To take any further action in this case increases time and expense for the court, the parties, including the class members, and also makes it more difficult to unwind any actions which the Court of Appeal finds improper. Plaintiffs do not seek to stay the class notice, but provide no analysis regarding why the expense of giving notice under a notice order which the plaintiffs will be appealing should go forward. If the Court of Appeal reverses any part of the judgment, the notice would have been of no value. Plaintiffs have provided no showing of the necessity to provide notice now when they argued, the City agreed and the court ordered that notice to the class did not need to be provided at the class certification stage or any time thereafter. Plaintiffs have argued that the class only needs to receive notice regarding the attorneys’ fees and costs, which is what plaintiffs specifically seek to stay.

As stated, plaintiffs also seek to stay enforcement of the motion for attorneys’ fees and costs, which is a collateral issue which can be decided even with the appeal. The court agrees with many of the City’s arguments, but defers to class counsel’s analysis and strategy since they have the fiduciary duties to the class. The court finds no violation of duty by class counsel for seeking to defer the attorneys’ fees motion because they are trying to preserve resources. For the reasons that the court finds that a stay is appropriate for a stay of enforcement of the judgment, the court also stays a decision about attorneys’ fees and costs.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for plaintiffs shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

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LINE 2

22-CIV-00303

AETNA INC VS GILEAD SCIENCES, INC

AETNA INC
GILEAD SCIENCES, INCDANIEL A. SASSE
MICHAEL J SHIPLEY

PLAINTIFF AETNA INC.'S MOTION TO FILE DOCUMENTS UNDER SEAL

TENTATIVE RULING:

The court grants plaintiff Aetna Inc.'s (Aetna) motion to seal portions of Gilead Sciences' (Gilead) Notice of Motion for Summary Adjudication on ASO Claims and Memorandum in Support Thereof, Gilead's Proposed Order Granting Gilead Sciences' Motion for Summary Adjudication on ASO Claims, and thirty-six exhibits submitted in support of the Motion and the exhibits 20, 21, 22, 23, 26, 27, 28, 29, 30, 32, 33, 34, 36, 38, 39, 40, 41, 42, 43, 44, 45, 46, 47, 48, 49, 50, 51, 52, 53, 54, 55, 56, 57, 58, and 59, which were lodged conditionally under seal by Gilead Sciences on August 17, 2026:

In this case, Aetna sues defendants Gilead and related entities for alleged Cartwright violations.

The court has already granted previous motions to seal in this case. Now, Aetna seeks to seal portions of Gilead's motion for summary judgment. Because the court anticipates that these documents will be used in other pre-trial motions, the court makes these findings as to the use of these documents in all pretrial documents so that the parties do not need to bring successive motions to seal these documents. This order does not extend to the trial and the court will discuss what documents, if any, will be sealed at trial at a pretrial conference.

Public access to court proceedings is paramount. (Code Civ. Proc., § 124; *NBC Subsidiary (KNBC-TV), Inc. v. Superior Court* (1999) 20 Cal.4th 1178, 1197 (*NBC Subsidiary*)). “[O]pen trials serve to demonstrate that justice is meted out fairly, thereby promoting public confidence in such governmental proceedings [citation]; ‘[m]ore importantly,’ open trials provide a means, ‘akin in purpose to the other checks and balances that infuse our system of government,’ by which citizens scrutinize and ‘check’ the use and possible abuse of judicial power [citation]; and finally, ‘with some limitations’ [citation], open trials serve to enhance the truth-finding function of the proceeding [citation].” (*NBC Subsidiary*, at pp. 1201–1202, quoting Justice Brennan’s concurring opinion in *Richmond Newspapers, Inc. v. Virginia* (1980) 448 U.S. 555 [public access to criminal trial]; see *NBC Subsidiary*, at p. 1211 [concluding same principles apply to civil trials].) “ ‘Popular attendance at trials, in sum, substantially furthers the particular public purposes of that critical judicial proceeding. In that sense, public access is an indispensable element of the trial process itself....’ [Citation.]” (*NBC Subsidiary*, at p. 1202.) Court records are presumed to be open. (Cal. Rules of Court, rule 2.550(c).)
